Letter to your car dealer:

By email only to:
john.smith@email.com

02nd February 2025

FORMAL LETTER OF COMPLAINT

Dear Sirs,

My Name:	John Smith
Current Address:	Flat 2E,10 High Street, Oxford, OX1 1DE
Previous Address:	Flat 2E,10 High Street, Oxford, OX1 1DE
Vehicle:	2018 Mini Clubman
Vehicle Reg:	V5C123123909090123
Complaint:	**Mis-Sold Vehicle Finance arising from the payment of a secret commission**

Introduction / Overview of Complaint:

I wish to make a formal complaint to yourselves as a result of a secret commission that I believe you received from Lloyds to facilitate the financial agreement I entered into with the Lender on or around 27-July-2018.

I believe that the payment of this commission influenced you to choose this Lender ahead of other potential companies who could have, and would have, offered more beneficial terms to me than the ones set out in the agreement that I entered into as a result of your actions.

Specifically, I submit that the payment of this commission to yourselves has resulted in me entering into a regulated agreement that was financially detrimental to me. I believe that if I had been provided with more options and / or received adequate disclosure of the commission you would receive to facilitate this agreement, I would have been able to make an informed choice about the prospective Lender and / or obtained a more suitable financing option for their needs with a lower interest / APR rate.

In the event that you seek to dispute this complaint on the basis that the commission model you have entered into with the Lender is not a “difference in charge” model and suggest that the commission was payable on a flat-fee scale, it is my position that this is immaterial to my complaint and it is my assertion that you elected to proceed with this Lender on the basis that they offered a higher level of commission than their competitors, regardless of whether this was on a difference in charge model or a flat-fee scale.

I wish for you to confirm the interest to me and pay it back with 8% interest from the date I entered into the finance.

If you will not tell me then I wish to claim 15% of the funding plus 8% interest. I believe that the figure is likely to be 15% of the total finance borrowed. This figure has been reached in line with the Financial Conduct Authority’s March 2019 report entitled “Our work on motor finance – final findings”.

Background:
I have been quoted 2% of commission to be paid, on the promise of paying 36 Months against 60 Months

Impact this has had on me:

A loss of £ 350.00 monthly to me

Resolution of my complaint:

In order to resolve this complaint, we request that you provide me with immediate reimbursement of the commission that you have received as a result of this agreement plus interest at a rate of 8% from the date of this letter within the next 14 days.

Next Steps:

Whilst we trust that you will not look to dispute that I am entitled to the resolution requested above for the reasons set out in this letter, if you do wish to reject this complaint, then I can advise that I shall forward my complaint to the FOS.

Irrespective of the outcome of your response we require a formal response in writing setting out your reasons for any decision. Even if you agree to reimburse our client, we still need a response to the complaint in writing so that we may close our client's file. To confirm, we will not accept decisions sent to our client directly as a resolution of this complaint.

Thank you in advance and we look forward to hearing from you in the timescales prescribed above.

Yours faithfully,
John Smith